

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
SENIOR JUDGE WILEY Y. DANIEL**

Courtroom Deputy: Robert R. Keech
E.C.R./Reporter: Julie Thomas

Date: February 20, 2018

Civil Action No: **17-cv-00025-WYD-KHR**

Counsel:

VALERIE JEFFERS,

Matthew R. Osborne

Plaintiff,

v.

OCWEN LOAN SERVICING, LLC,

Robert J. Hoffman

Paul J. Lopach

Defendant.

COURTROOM MINUTES

TRIAL TO JURY (DAY 1)

8:30 a.m. Court in Session. Jury not present.

APPEARANCES OF COUNSEL.

Court's opening remarks.

8:31 a.m. Discussion regarding objection by Defendant to Plaintiff's exhibit 1.

ORDERED: Parties shall prepare a stipulation with respect to Plaintiff's exhibit 1.

Plaintiff's Motion to Enforce Stipulation (Doc. No. 73), filed February 15, 2018, is raised for argument.

8:48 a.m. Argument by Defendant by Mr. Hoffman.

8:49 a.m. Argument by Plaintiff by Mr. Osborne.

ORDERED: Plaintiff's Motion to Enforce Stipulation (Doc. No. 73), filed February 15, 2018, is **DENIED AS MOOT.**

8:49 a.m. Discussion regarding the case in West Virginia.

Court directs counsel not to mention the case in West Virginia until the matter can be addressed by the Court.

8:51 a.m. Court in Recess.

9:24 a.m. Court in Session. Jury present.

Court's opening remarks to prospective jurors.

9:25 a.m. Voir dire oath given.

9:35 a.m. Voir dire by Court commences.

10:50 a.m. Court in Recess.

11:12 a.m. Court in Session. Jury present.

Voir dire by Court continues.

11:56 a.m. Voir dire by Plaintiff by Mr. Osborne.

12:11 p.m. Voir dire by Defendant by Mr. Hoffman.

Challenges for Cause:

N/A

Peremptory challenges by Plaintiff:

- 1) 100338570
- 2) 100343869
- 3) 100368089

Peremptory challenges by Defendant:

- 1) 100358374
- 2) 100330228
- 3) 100346637

12:25 p.m. Court reads preliminary jury instructions.

12:27 p.m. Jury sworn to try the case:

1)	100369157	2)	100347877
3)	100370504	4)	100366271
5)	100340778	6)	100344479
7)	100354141	8)	100350082
9)	100364154	10)	100339644

12:28 p.m. Court in Recess.

1:58 p.m. Court in Session. Jury not present.

Discussion regarding the parties working on a stipulation related to Plaintiff's exhibit 1.

2:03 p.m. Jury enters.

Court reads additional preliminary jury instructions.

2:15 p.m. Opening statement by Plaintiff by Mr. Osborne.

2:16 p.m. Bench conference regarding objection by Defendant - **OVERRULED.**

2:21 p.m. Opening statement continues by Plaintiff by Mr. Osborne.

2:39 p.m. Opening statement by Defendant by Mr. Hoffman.

2:55 p.m. Plaintiff's witness **Kevin Flannigan** sworn.

Direct examination by Plaintiff by Mr. Osborne.

Exhibit(s) Identified: 2, A, 25, 22, deposition of Kevin Flannigan (6/17/16) opened in error, copy of deposition of Kevin Flannigan (6/16/17) for purposes of impeachment, 7, 6

Exhibit(s) 2 REFUSED.

Exhibit(s) A, 25, 22, 7, 6 RECEIVED.

4:05 p.m. Jury excused until Wednesday, February 21, 2018, at 9:00 a.m.

Discussion regarding schedule for tomorrow.

4:07 p.m. Court in Recess. TRIAL CONTINUED.

TOTAL TIME: 5:12